

Hernán Gómez Yuri

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EDUCATION

2024-present	Doctoral Candidate (J.S.D.) Research Project: Study of the design and development of fourth-branch institutions (organismos constitucionales autónomos) across Latin American constitutions and their impact on the practice of separation of powers and the system of checks and balances. Doctoral Committee: Cristina Rodríguez (chair), Bruce Ackerman (reader), Susan Rose-Ackerman (reader), Nicholas R. Parrillo (reader). Student Organizer of a Reading Group on comparative constitutional law: Challenges to Constitutional Democracy: Lessons from Latin America (Fall 2024). Convener of the Doctoral Colloquium 2024-2025.	YALE LAW SCHOOL
2023-2024	Master of Laws (LL.M.) During the program, worked as a research assistant and pursued two supervised research projects under the mentorship of Professors Jack Balkin and Cristina Rodríguez.	YALE LAW SCHOOL
2014-2021	Bachelor of Laws (LL.B.) Degree obtained with highest honors (GPA: 6.3/7.0) . Dissertation: “The need for a sociological razor in Kelsen’s Pure Theory: efficacy as a condition of the constituent”, supervised by Professor Carolina Bruna (Ph.D.) , funded by a FONDECYT research project .	UNIVERSITY OF CHILE

HONORS

2025	Land Steiermark Fellowship Short-term research fellowship, funded by the State of Styria, supporting academic research in constitutional and comparative law at Faculty of Law of the University of Graz in Austria.	KARL FRANZENS UNIVERSITÄT GRAZ
2022	Fulbright Scholarship Grant to study a Master’s degree in the U.S. The Scholarship is awarded to outstanding applicants for their academic performance and trajectory, social commitment and work in communities.	FULBRIGHT COMMISSION

ACADEMIC EXPERIENCE

2024	Research assistant Worked with Professor Daniel Markovits (D.Phil.) in the Global Private Law Project . The project sought to bring together voices traditionally ignored in the comparative private law scholarship.	YALE LAW SCHOOL AND MAX PLANCK INSTITUTE (HAMBURG)
2021-2023	Research assistant Worked with Professor Pablo Marshall (Ph.D.) in the FONDECYT research project : “The exercise of fundamental rights of people with mental disabilities in Chile: a human right perspective”. Collaborated in the draft of proposals for the new Mental Health Statute. Presented at interdisciplinary conferences about disability.	AUSTRAL UNIVERSITY OF CHILE
2022-2023	Academic mentor (PACE Program) The PACE program seeks to provide access to universities to outstanding high school students from underprivileged backgrounds. Worked mentoring first and second-year law school students. Drafted guidelines and materials to guide new PACE students in their first years of law school.	SILVA HENRÍQUEZ CATHOLIC UNIVERSITY
2021-2023	Lecturer “ Philosophy of law ”. Course addressed to second-year students at the Law School. Introduced the main philosophical approaches to the law from antiquity to the present.	SILVA HENRÍQUEZ CATHOLIC UNIVERSITY

2022

Lecturer

DIEGO PORTALES UNIVERSITY

“Sources of law”. Course addressed to first-year students at the Law School. Provided an introduction to the legal system and the basic concepts of legal theory.

2015–2021

Teaching assistant

UNIVERSITY OF CHILE

“Moral philosophy” from 2015 to 2020. “History of philosophy of law” from 2017 to 2021. “Critical legal theory” from 2020 to 2021.

PUBLICATIONS

ARTICLES & ESSAYS

1. Gómez Yuri, Hernán and Fernando Loayza Jordan (2025). “Fourth-Branch Institutions and Political Oppositions.” *VRÜ Verfassung Und Recht in Übersee* 57 (4), 649–675.
2. Gómez Yuri, Hernán. (2023). “La sociología implícita en la teoría pura del derecho.” *Revista de Derecho (Coquimbo. En Línea)*, 30, e4408.
3. Marshall, Pablo and Gómez Yuri, Hernán (2022). “Directrices anticipadas en salud mental y el problema de la revocación.” *Acta bioethica*, 28(2), 205–214.
4. Gómez Yuri, Hernán (2022). “De la revuelta a la nueva constitución: Reflexiones sobre la noción de dignidad a la luz del estallido social chileno.” *Anuario de Derechos Humanos*, 18(1), 57–69.

CHAPTERS IN EDITED VOLUMES

1. Hernán Gómez Yuri, and Rodrigo Castillo (2025). “Cuestiones en torno al apoyo para el sufragio de las personas con discapacidad en el derecho internacional de los derechos humanos.” In Claudia Iriarte Rivas and Rita Lages de Oliveira (Ed.) *Derechos Humanos, Discriminación y Grupos Vulnerables*, Editorial Tirant lo Blanch, 393–420.
2. Gómez Yuri, Hernán. (2021) “Chile.” In Richard albert and Luís Roberto Barroso (Ed.) *2020 International Review of Constitutional Reform*, Program on Constitutional Studies at the University of Texas at Austin in collaboration with the International Forum on the Future of Constitutionalism, 65–69.
3. Gómez Yuri, Hernán. (2021) “Aportaciones del derecho internacional a la determinación del sentido y alcance de la dignidad en el debate constitucional.” In Gauché, Ximena (Coord.) *Dossier X Coloquios de Derecho Internacional. Constitución Política y Derecho Internacional*, Universidad de Concepción, 69–78.

PRESENTATIONS AND CONFERENCES

1. “The Guarantor’s Puzzle” *Ph.D. in Progress Seminar*, Global South Network (Online), October 2025.
2. “Constitutional Courts and the Foundations of the Fourth Branch” *Steiermark Fellowship: Final Presentation*, University of Graz (Austria), October 2025.
3. “Fourth Branch Accountability” *ICON•S 2025 Annual Conference*, University of Brasília (Brazil), July 2025.
4. With Fernando Loayza Jordan: “Fourth Branch and Political Opposition” *The Global Summit on Constitutionalism*, The University of Texas at Austin (United States), March 2025.
5. “What Fourth Branch? Preliminary problems in the comparative study of constitutional autonomies” *Núcleo Constitucional UAH*, Universidad Alberto Hurtado (Chile), June 2025.
6. “What are Fourth-Branch Institutions?” *Work-in-Progress Symposium*, Yale Law School (United States), April 2024.
7. “Chile’s Constitutional Future.” *2nd Graduate Conference in Constitutional Change*, University of Texas at Austin School of Law (United States), January 2024.

8. “El problema de lo auto-vinculante en los pactos de Ulises.” *National Philosophy of Law Conference*, Universidad Austral (Chile), November 2022.
9. “Constitución y precompromiso.” *LI Chilean Conference of Public Law*, Universidad de Chile (Chile), November 2022.
10. “La textura abierta de la dignidad.” *VII National Conference of Philosophy*, Universidad Católica de la Santísima Concepción (Chile), October 2021.
11. “Aportaciones del derecho internacional a la determinación del sentido y alcance de la dignidad en el debate constitucional.” *X International Law Colloquia*, Universidad de Concepción (Chile), January 2021.
12. “Las bases Epistemológicas de Hans Kelsen.” *III Colloquium of Philosophy Students*, Universidad Católica de la Santísima Concepción (Chile), November 2020.
13. “¿Cómo interpretar la demanda por dignidad? Consideraciones a propósito del estallido social chileno.” *VI Conference of Philosophy Students*, Universidad Alberto Hurtado (Chile), November 2020.
14. “La navaja del Sein y el lugar de una sociología en la Teoría Pura de Kelsen.” *National Philosophy of Law Conference*, Universidad de Chile (Chile), November 2018.
15. “Derecho y Venganza: El delito como agravio a la sociedad y la dimensión vindicativa de la pena.” *V National Conference of Philosophy*, Universidad Austral (Chile), November 2017.

SERVICE TO THE COMMUNITY

2024-present

Peer Reviewer

Blind reviewer for the *Revista Anuario de Derechos Humanos*, Vol. 20 Núm.1 (2024), and the *Revista Colombiana de Bioética*, Vol. 19 Núm. 2 (2024).

2017-2023

Volunteer

LEASUR NGO

Leasur is an NGO that seeks to promote and defend the rights of persons deprived of liberty. Worked in the Territorial Division, visiting prisons in Santiago between 2017-2018. Served as part of the Communications division; led this team during 2018; designed communication campaigns aimed at different target audiences.

2020-2021

Legal internship

HUMAN RIGHTS OFFICE (CAJ)

Mandatory pro bono work to be admitted to the Chilean Bar. Provided legal counsel and represented victims of **human rights violations** committed since Augusto Pinochet's dictatorship until the present, in claims for damages filed against the Chilean State; legal representation included litigation before civil courts and Courts of Appeals. Worked in the definition of the judicial strategy. Drafted briefs and prepared oral pleadings.

LANGUAGES

Spanish: Native.

English: Advanced (TOEFL iBT: 105/120, december 2021).